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February 11, 2025

By: Weaver

An Act relating to sheriffs; amending 19 O.S. 2021, Section 547, as amended by Section 1, Chapter 325, O.S.L. 2024 (19 O.S. Supp. 2024, Section 547), which relates to deputizing certain persons; authorizing submission of certain resolution to board of county commissioners; stating resolution criteria; authorizing certain duties for certain peace officers; stating certain liability and responsibilities; requiring certain resolution; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 19 O.S. 2021, Section 547, as amended by Section 1, Chapter 325, O.S.L. 2024 (19 O.S. Supp. 2024, Section 547), is amended to read as follows:

Section 547. A. The sheriff shall be responsible for the official acts of the undersheriff and deputy sheriffs, and may revoke such appointments at the pleasure of the sheriff; provided, however, for counties with a population of five hundred thousand (500,000) or more persons, according to the latest Federal Decennial Census, with the exception of chief deputies and undersheriffs, all deputy sheriffs and detention officers shall serve a five-year probationary period during which the deputy sheriff or detention

1 officer shall be considered an at-will employee. After the five-
2 year probationary period, such deputy sheriff or detention officer
3 shall not be discharged except for just cause. The sheriff or the
4 undersheriff may in writing depute certain persons to do particular
5 acts.

6 B. Each sheriff may appoint as many reserve force deputy
7 sheriffs as are necessary to preserve the peace and dignity of the
8 county. A current list of each person holding such appointment
9 shall be maintained by the county sheriff and shall be available to
10 the public. Reserve force deputy sheriffs may perform duties which
11 encompass a particular act or a series of acts. The sheriff or a
12 Council on Law Enforcement Education and Training-certified deputy
13 sheriff shall accompany a reserve force deputy sheriff in the
14 performance of all duties assigned to such reserve force deputy
15 sheriff unless such reserve deputy has completed the required two-
16 hundred-forty-hour basic police course. Reserve force deputies may
17 receive compensation for their services. The sheriff may pay
18 reserve force deputies for travel expenses pursuant to the State
19 Travel Reimbursement Act. Such reserve deputy sheriffs shall
20 complete a two-hundred-forty-hour basic police course within six (6)
21 months after they have been commissioned to be paid by the county as
22 an individual reserve deputy. The sheriff may pay for additional
23 training courses attended by reserve force deputies.

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1 C. Reserve force deputy sheriffs shall not serve more than one
2 hundred forty (140) hours per calendar month.

3 D. The sheriff or a designee may deputize municipal police
4 officers subject to an interlocal governmental agreement to combine
5 city and county law enforcement efforts and to encourage cooperation
6 between city and county law enforcement officials. Liability for
7 the conduct of any municipal police officers deputized under the
8 terms and conditions of an interlocal governmental agreement shall
9 remain the responsibility of their municipal employer.

10 E. The sheriff may enter into mutual aid agreements pursuant to
11 the Interlocal Cooperation Act, Section 1002 et seq. of Title 74 of
12 the Oklahoma Statutes, to assist or provide law enforcement services
13 to any town, city, and county within this state and the sheriff and
14 deputies shall have law enforcement authority within the
15 jurisdiction making the request. The employing governmental unit
16 shall remain responsible for their officers or deputies pursuant to
17 any mutual aid agreement.

18 F. A sheriff of the county may respond to any request from any
19 other jurisdiction within the state for law enforcement assistance
20 in cases of emergency. The sheriff, deputy sheriffs, and reserve
21 deputy sheriffs serving in response to the emergency request shall
22 have the same powers and duties as though employed by the requesting
23 law enforcement agency, and when so acting they shall be deemed to
24 be acting within the scope of employment of the requesting law

1 enforcement agency. Salaries, insurance, and other benefits shall
2 be provided in the regular manner by the county in which the
3 sheriff, deputy sheriffs, and reserve deputy sheriffs are regularly
4 employed. As used in this subsection, "emergency" means a sudden
5 and unforeseeable occurrence or condition, either as to its onset or
6 its extent, of such severity or magnitude that immediate response or
7 action is necessary to assist law enforcement agencies having
8 jurisdiction at the scene of the emergency to carry out their
9 functions.

10 G. A reserve force deputy sheriff shall be authorized to serve
11 civil process pursuant to Section 2004 of Title 12 of the Oklahoma
12 Statutes.

13 H. The sheriff may contract with a private security firm that
14 meets the requirements set forth in Sections 1750.1 through 1750.14
15 of Title 59 of the Oklahoma Statutes to guard any detainee or
16 prisoner temporarily housed for treatment in a medical facility
17 outside the confines of the jail. No private security firm may
18 transport a prisoner to or from an outside medical facility.
19 Transportation of a prisoner is only to be conducted by the sheriff
20 or deputy sheriff.

21 I. 1. Any sheriff of a county in which an event is occurring
22 and which the sheriff believes will require additional resources
23 than are normally available to the sheriff shall seek and submit
24 approval of a resolution to the board of county commissioners

1 requesting permission to contract with the sheriff of another county
2 to provide the needed additional resources. The resolution shall
3 include information pertaining to the event including, but not
4 limited to, the event name, location, duration, and additional
5 resources needed.

6 2. Any sheriff, deputy sheriff, or reserve deputy sheriff
7 assigned to work an event outside of his or her county of employment
8 shall have the same powers and duties as though employed by the
9 sheriff of the county in which the event takes place. Liability for
10 the conduct of any sheriff, deputy sheriff, or reserve deputy
11 sheriff, while in the performance of duties during such event or any
12 activity in conjunction with the event, shall remain the
13 responsibility of the employing county. Salaries, insurance, and
14 other benefits shall be provided in the regular manner by the county
15 in which the sheriff, deputy sheriff, or reserve deputy sheriff is
16 regularly employed.

17 SECTION 2. This act shall become effective November 1, 2025.

18 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
19 February 11, 2025 - DO PASS
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